

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
KEVIN BOYCE,

Plaintiff,

-against-

SUMMONS
INDEX NO.

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, POLICE OFFICER
RUIZ, TAX ID # 959169, INDIVIDUALLY AND
AS A POLICE OFFICER, AND POLICE OFFICERS
JOHN DOES #1-#6, 62ND PCT., IDENTITIES CURRENTLY
UNKNOWN, EACH INDIVIDUALLY AND AS A POLICE
OFFICER,

Defendants.

Plaintiff designates Kings
County as the place of trial.
The basis of the venue is that
Kings County is the place
where the cause of action
arose.

-----X
To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney with twenty (20) days after the service of this summons, exclusive of the day of service (30) days after the service is complete if the summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
March 14, 2019


EMDIN & RUSSELL, LLP.
Attorneys for Plaintiff
490 Seventh Avenue 12N
New York, New York 10018
(212) 683-3995

Defendants address:

City of New York
c/o Office of the Corporation Counsel
100 Church Street
New York, New York 10007

Police Officer Ruiz
Tax ID# 959169
c/o 62nd pct.
1925 Bath Avenue
Brooklyn, NY 11214

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
KEVIN BOYCE,

Plaintiff,

VERIFIED COMPLAINT

-against-

INDEX NO.

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, POLICE OFFICER
RUIZ, TAX ID # 959169, INDIVIDUALLY AND
AS A POLICE OFFICER, AND POLICE OFFICERS
JOHN DOES #1-#6, 62ND PCT., IDENTITIES CURRENTLY
UNKNOWN, EACH INDIVIDUALLY AND AS A POLICE
OFFICER,Defendants.
-----X

The plaintiff, Kevin Boyce, by his attorneys, Emdin & Russell, L.L.P., complaining of the defendants respectfully shows to this court and alleges:

1. Upon information and belief that at all times hereinafter mentioned, the defendant, the City of New York, hereinafter referred to as "City", was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
2. Upon information and belief that at all times hereinafter mentioned, the defendant "City" its agents, servants and employees operated, maintained and controlled the Police Department of the City of New York hereinafter referred to as "NYPD" including all the police officers thereof.
3. Upon information and belief, that at all times hereinafter mentioned, specifically on the 14th day of September, 2018, at approximately 11:00 p.m., Police Officer Ruiz, Tax ID # 959169 hereinafter referred to as "Ruiz" and Police Officer John Does #1- #6, collectively

referred to as the “Does”, each of the 62nd pct., identities presently unknown, were employed by the defendant, “City”, and/or “NYPD” as police officers, and were assigned to the 62nd precinct and at all times hereinafter mentioned acted in the capacity of police officers. Each is sued individually and as police officers.

4. Upon information and belief, “Ruiz” and the “Does”, hereinafter collectively referred to as “the officers” were screened, interviewed, hired by the “City”, trained by the “City”, was retained by the “City”, and was investigated, monitored, supervised and/or disciplined by the “City”.
5. That the plaintiff is a resident of Kings County and timely filed and served a Notice of Claim on the City.
6. The City acknowledged receipt of the notice of claim and did not request a 50(h) hearing of the plaintiff
7. That more than 30 days have elapsed since the Notice of Claim and intention to sue has been served upon the defendant, City of New York and the said defendant has neglected or refused to make any adjustment or payment thereof.
8. That this action is commenced within one year and 90 days after the cause of action arose.
9. Upon information and belief at all times hereinafter mentioned, and specifically on the 14th day of September 2018, at approximately 11:00 p.m. Boyce was arrested inside the 62nd pct. by Ruiz, for the alleged crime of contempt of court, i.e. violating an order of protection. This occurred in the presence of other officers from the 62nd pct., including one or more of the “Does”.
10. Upon information and belief prior to plaintiff’s arrest, on September 14, 2018 at

approximately 7:00 p.m., Ruiz and a male officer from the 62nd pct. went to the plaintiff's home.

11. Both officers were advised by Dawn Ubry, the recipient of the original order of protection, that the underlying criminal case against the plaintiff had been dismissed and the order of protection vacated.
12. Instead of investigating or verifying the information provided by Ms. Ubry, they threatened her with arrest and removal of her children.
13. The aforementioned order of protection against the plaintiff, and in favor of Ms. Ubry, was vacated on September 6, 2018 when the criminal case against him was dismissed under docket number 2018KN02422.
14. Thereafter, the plaintiff twice called the 62nd pct. and spoke to an officer, also advising him/her of the dismissal of the underlying criminal case and the order of protection.
15. At approximately 10:45 p.m. the plaintiff went to the 62nd pct. to confirm and advise the precinct officers, including but not limited to the desk officer(s), Ruiz, and her partner, that his criminal case was closed, that the order of protection was vacated and that he was allowed to return to his home.
16. Instead, Ruiz arrested the plaintiff, and refused to verify the information that the plaintiff and Ms. Ubry provided.
17. The plaintiff was placed in handcuffs, searched, his medication confiscated and vouchered, and he was placed in a holding cell.
18. The plaintiff had committed no crime.
19. The plaintiff was held in custody against his will for approximately 20 hours, at which time

he was released without charges after the District Attorney's Office declined prosecution.

20. Plaintiff, was and is, at all times innocent of all charges and had committed no crime.

21. That this action falls within one of the exceptions of CPLR 1601.

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF PLAINTIFF
AGAINST ALL NAMED DEFENDANTS FOR FALSE IMPRISONMENT

22. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "21" with the same force and effect as if more fully and at length set forth herein.

23. That beginning on or about the 14th day of September, 2018, at the approximate hour of 11:00 p.m. at or near the 62nd pct. kings County, NY and continuing to September 15th, 2018, until approximately 8:30 p.m. the defendants, and their agents, servants and/or employees intentionally handcuffed and imprisoned the plaintiff, without any just cause or grounds therefore and held him against his will under full force of arms.

24. That said imprisonment was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, or any cause to believe that the plaintiff was guilty of any crimes, or that the defendants had just cause to imprison the plaintiff.

25. The plaintiff was wholly innocent of any crime and did not contribute in any way or manner to his arrest or imprisonment by the defendants, their agents, servants and/or employees and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.

26. That the defendants, their agents, servants and/or employees, as set forth above, intended to

confine the plaintiff; in that the plaintiff was conscious of his confinement; the plaintiff did not consent to the confinement; and the confinement was not otherwise privileged.

27. That by reason of the aforesaid false imprisonment and detention of the plaintiff, he was subjected to great indignity, humiliation, pain and great distress of mind and body and the said plaintiff has been otherwise damaged.

28. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

**AND AS FOR A SECOND CAUSE OF
ACTION FOR FALSE ARREST AGAINST ALL NAMED DEFENDANTS**

29. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "28" with the same force and effect as if more fully and at length set forth herein.

30. That on the 14th day of September, 2018 at approximately 10:30 p.m. the defendants, and their agents, servants and/or employees intentionally and knowingly arrested, handcuffed, detained and imprisoned plaintiff, without any just cause or grounds therefore, and held him against his will under full force of arms until he was released at approximately 8:30 p.m.

31. That the plaintiff was falsely arrested, imprisoned and accused by the defendants, their agents, servants and/or employees of having committed the crime of criminal trespass.

32. That said arrest was caused by the defendants and their agents, servants, and/or employees, without any warrant or other legal process, without authority of the law and without any reasonable grounds or cause to believe that the plaintiff was guilty of any crime.

33. The plaintiff was wholly innocent of any crime and did not contribute in any way or manner to his arrest by the defendants, their agents, servants and/or employees and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.
34. The defendants, their agents, servants and/or employees, as set forth above, intended to seize, handcuff and arrest the plaintiff; the plaintiff was conscious of his arrest and confinement ; the plaintiff did not consent to his arrest and confinement; and the arrest and confinement was not otherwise privileged.
35. That by reason of the aforesaid false arrest and false charges filed against him, the plaintiff was subjected to great indignity, humiliation, and distress of mind and body and the said plaintiff has been otherwise damaged.
36. That by reason of the aforesaid, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
AGAINST ALL NAMED DEFENDANTS FOR ASSAULT AND BATTERY:

37. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "36" with the same force and effect as if fully set forth herein.
38. Upon information and belief, on or about the 14th day of September, 2018, commencing at the approximate hour of 10:30 p.m. the defendants, while acting in the scope of their employment as police officers and as agents for the defendant the "City", without just cause or provocation searched, and handcuffed the plaintiff.
39. That all said contact was committed without the plaintiff's consent and with the intention

of causing harmful and/or offensive bodily contact to the plaintiff and caused such batter to the plaintiff.

40. That said acts occurred within the scope of the police officers' employment with the "City".

41. That by reason of the aforesaid intentional battery and assault, the plaintiff suffered and still continues to suffer from emotional trauma, and that he was otherwise damaged.

42. That by reason of the aforesaid assault and battery, the plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION
ALLEGING VIOLATION OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTION 1983 BY "RUIZ", AND "DOES"
EACH IN HIS INDIVIDUAL CAPACITY AND AS AN AGENT OF
THE CITY OF NEW YORK

43. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "42" with the same force and effect as if more fully and at length set forth herein.

44. That at all times hereinafter mentioned, Ruiz and the Does, were employed by the defendant The City of New York and/or The New York City Police Department and each was acting under the color of his/her official capacity, and their acts and actions were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

45. That at all times hereinafter mentioned, Ruiz and the Does, individually and collectively, acted pursuant to orders and directives from defendant, The City of New York.

46. That during all times hereinafter mentioned, "the officers" acted under color and pretense

of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department and that they were acting under the color and pretense of law, and engaged in the illegal conduct set forth in this complaint to the injury of the plaintiff, and deprived him of the rights, privileges and immunities secured to him by the Fourth and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and U.S.C. Section 1983 and/or Section 1988.

47. That the unlawful and illegal conduct of the defendants "officers" deprived the plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York:

- a) The right of plaintiff to be secure in his person and effects against unreasonable search and seizure, under the Fourth and Fourteenth Amendments to the Constitution of the United States.

48. That by reason of the aforesaid violations, including but not limited to: illegal search and seizure; seizure of plaintiff's person, his false arrest and false imprisonment, battery and assault, failure to intervene, excessive detention, and denial of plaintiff's medication, the defendants, Ruiz and the Does violated plaintiff's rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, The defendant officers violated 42 U.S.C. §1983

49. That as a direct proximate result of the defendants actions the plaintiff was subjected to great indignities and humiliation, and pain and distress of mind and body and was

humiliated and defamed thereby.

50. That by reason of the aforesaid, the plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain, and he has expended and incurred divers sums of money in an effort to cure himself of said injuries, to extricate himself from the indignities and humiliation foisted upon him by the actions of the defendants..

51. That by reason of the aforesaid, the plaintiff, has been damaged in a sum exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages, costs, attorneys fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper.

WHEREFORE, the plaintiff demands judgment against the defendants on the First through Fourth cause of action in a sum to be determined by the trier of fact, plus costs, attorney's fees, punitive damages (4th causes of action only) and such further relief as to the court seems just and proper.

DATED: New York, New York
March 14,, 2019



Jeffrey Emdin, Esq.
Emdin & Russell, L.L.P.
Attorneys for plaintiff
499 Seventh Avenue
Suite 12N
New York, New York 10018
(212) 683-3995

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

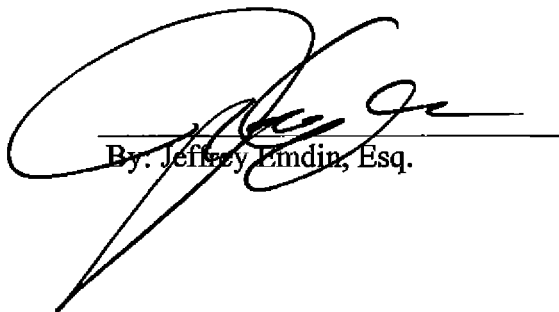
That I am an attorney associated with the law firm of Emdin & Russell, LLP., the attorneys of record for the Plaintiff in the within action; that I have read the foregoing Verified Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason this Verified Complaint is made by me and not by the Plaintiff is that the Plaintiff does not reside in the County where the undersigned maintains an office.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiffs and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
March 14, 2019


By: Jeffrey Emdin, Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

KEVIN BOYCE,

Plaintiff,

-against-

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER RUIZ, TAX ID # 959169, INDIVIDUALLY AND AS A POLICE OFFICER, AND POLICE OFFICERS JOHN DOES #1-#6, 62ND PCT., IDENTITIES CURRENTLY UNKNOWN, EACH INDIVIDUALLY AND AS A POLICE OFFICER,
Defendants.

SUMMONS WITH VERIFIED COMPLAINT

LAW OFFICES OF EMDIN & RUSSELL

Attorney for Plaintiff

499 Seventh Avenue, Floor 12N

New York, New York 10018

(212) 683-3995

TO: Office of the Corporation Counsel
City of New York
100 Church Street
New York, NY 10007

Police Officer RUIZ
Tax ID # 959169
c/o 62nd Pct.
1925 Bath Avenue
Brooklyn, NY 11214

The New York City Police Department
1 Police Plaza
New York, NY 10038

Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: March 14, 2019

Signature

Jeffrey L. Emdin, Esq.

PLEASE TAKE NOTICE

[] NOTICE OF ENTRY that the within is a true copy of a Order dated _____, by the Honorable _____ duly entered in the office of the clerk of the within named court on _____

[] NOTICE OF SETTLEMENT that an order _____ of which the within is a true copy will be presented for settlement to the HON. _____ one of the judges of the within named Court, at on _____ 20____